



---

## Appeal Decision

Site visit made on 30 July 2026

by **C Butcher BSc MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 09 September 2026

---

### Appeal Ref: 6003055

#### **Gwel An Syllan, Truthwall Lane, Truthwall, St Just, Cornwall, TR19 7PU**

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
  - The appeal is made by Mr and Mrs Charlie and Michelle Blaken against the decision of Cornwall Council.
  - The application Ref is PA25/04202.
  - The development proposed is the construction of 1 – 9 residential dwellings at land to east of Gwel An Syllan, Truthwall Lane, Truthwall, St Just, TR19 7PU.
- 

### Decision

1. The appeal is dismissed.

### Preliminary Matters

2. The proposal is for permission in principle. Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has two stages: the first stage (or permission in principle stage) establishes whether a site is suitable in-principle and the second ('technical details consent stage') is when the detailed development proposals are assessed. This appeal relates to the first of these two stages.
3. The scope of the considerations for permission in principle is limited to location, land use and the amount of development permitted<sup>1</sup>. All other matters are considered as part of a subsequent Technical Details Consent application if permission in principle is granted. I have determined the appeal accordingly.
4. An updated version of the National Planning Policy Framework (the Framework) was published on 17<sup>th</sup> August 2026. In the interests of fairness, I provided the main parties with an opportunity to provide comments on the new Framework as part of the appeal process. I have taken account of those comments when making my decision.

### Main Issues

5. The main issue is whether the site is suitable for residential development, having regard to its location, the proposed land use and the amount of development.

---

<sup>1</sup> PPG Paragraph: 012 Reference ID: 58-012-20180615

## Reasons

6. Policy 3 of the Cornwall Local Plan Strategic Policies 2010 – 2030 (the LP), sets out the way in which new housing will be provided across the county within the plan period. The main parties appear to agree that the part of the policy that is most pertinent to the consideration of this proposal is the clause which refers to the rounding off of settlements.
7. In December 2017, the Council also published a Chief Planning Officers Advice Note on Infill/Rounding Off (the CPOAN). The CPOAN provides additional information to help interpret the wording of LP Policy 3. While only guidance, I can see no reason to depart from the CPOAN in determining whether the proposal before me would constitute the rounding off of a settlement.
8. Both LP Policy 3, and the CPOAN, require the decision maker to consider whether or not the proposed number of dwellings would be of an appropriate scale, given the role and size of the settlement. Indeed, the permission in principle legislation also enables consideration of the amount of development. In this instance, Truthwall is a very small village which includes a nucleus of dwellings around a crossroads, and linear development which stretches a short distance away from the nucleus, including along Truthwall Lane.
9. The proposal before me presents a range in the quantum of proposed homes of between one to nine. I therefore must consider the potential impacts of the upper end of that range. Having looked at the settlement as a whole during my site visit, it is abundantly clear to me that a development of nine dwellings would appear as a very significant addition and would therefore inevitably appear as being disproportionate to the size of Truthwall. On that basis, the proposal would conflict with local policy and guidance, as well as the matters that can be considered at the permission in principle stage.
10. Paragraph 1.68 of the LP also notes that rounding off should not visually extend building into the open countryside. During my site visit, I noted the linear row of cottages which extends for a short distance along the north side of Truthwall Lane. The appeal site is located directly opposite these dwellings on the south side of the lane. However, as one walks eastwards along the lane there is a real appreciation of development becoming more sporadic and a clear sense of transition from the small urban core of the village around the crossroads to the countryside beyond.
11. The lane itself, and the Cornish hedgebank on its southern side therefore appear as a logical boundary to the settlement in this location. Indeed, it was apparent during my visit that the appeal site seems to have a much closer visual connection to the surrounding countryside than it does to the village itself. This is despite the presence of existing dwellings on the western and northern sides of the site, and the fact that there are hedges on its southern and eastern boundaries. The way that the site has been managed, with shorter grass, does not alter its fundamental character in my view. With this in mind, it is clear that a development of up to nine dwellings, in whatever form it would take, would appear as an incursion into the open countryside.
12. Therefore, while the development could be designed in a way that would not extend eastwards beyond the existing row of dwellings, thereby avoiding a situation where additional land becomes available for rounding off on the northern

side of the lane, it must be concluded that the proposal would not represent the rounding off of a settlement.

13. The design, scale and layout of the proposal do not form part of the permission in principle stage. However, the effect of additional built form more generally can still be considered in order to determine whether the appeal site is in a suitable location. In this instance, the site is located within the Botallack and Truthwall Conservation Area. The significance of the Conservation Area, in so far as it is relevant to this appeal, is derived from the development of the village over many years, the historic appearance of many of the dwellings and the relationship of the village with the surrounding rural landscape.
14. In this instance, I have already noted that there is a strong sense of transition as one travels eastwards along Truthwall Lane. Indeed, the undeveloped nature of the appeal site plays an important role in maintaining the existing highly verdant, bucolic and rural character of the settlement. The site therefore contributes strongly to the character and appearance of the immediate area, as well as the significance of the Conservation Area.
15. It is absolutely inevitable that a development of up to nine dwellings on the site would greatly erode the existing sense of transition from the village to the countryside. Moreover, the proposed development would result in dwellings on both sides of Truthwall Lane as it extends away from the area around the crossroads. As such, it would add significantly more built form and would reduce the connection that the village has to the surrounding landscape, including by eroding the existing sense of verdancy and rurality. Moreover, it would also be perceived as a contrived incursion into the countryside.
16. Section 72 of the Planning (Listed Buildings and Conservation Areas) Act 1990 requires that special attention is paid to the desirability of preserving or enhancing the character or appearance of the Conservation Area. Given the modest size of the site, and with regard to the criteria set out within Policy HE6(1) of the Framework, the proposal would result in 'harm'. In these circumstances, Policy HE6(4) of the Framework requires that this harm must be weighed against public benefits. Substantial weight must be given to a designated heritage asset's conservation.
17. The benefits of the proposal before me include the provision of up to nine dwellings in an area that is relatively well served by public transport, and which would contribute towards housing need, including the possibility of affordable dwellings. It would also provide economic benefits during the construction phase and post-occupation. The modest size of the proposal means that the scale of the public benefits would be moderate in nature. As a result, I therefore conclude that the public benefits do not outweigh the harm that I have identified. The proposed development would therefore fail to preserve or enhance the character or appearance of the Conservation Area and would result in harm to its significance.
18. The site also forms part of the Cornwall National Landscape (the NL). Policy N4(1) of the Framework states that substantial weight should be placed on the importance of conserving and enhancing the natural beauty of such areas. Furthermore, the Levelling Up and Regeneration Act 2023 requires decision makers to actively seek to further the statutory purposes of NL's.

19. I have already described how the proposal would have a negative impact upon the Conservation Area. While new development within NL's must not automatically be refused, it is inevitable in this instance that the described harm would also extend to the scenic beauty of the NL.
20. It is also important to note that the site is also located within the St Just Mining District of the World Heritage Site (WHS). The Outstanding Universal Value (OUV) of the area, in so far as it relates to this appeal, is connected to the history of Truthwall as a location that has strong links to the mining industry, including the presence of mine worker small holdings. I note that the WHS site office has objected to the proposed development on the basis that the scale and form of the appeal site strongly suggest that it formed a typical smallholding plot. However, the provided details are relatively vague, and the response also sets out that the records are somewhat uncertain.
21. Therefore, while I recognise the close links that Truthwall has with the mining industry, the WHS designation is not a moratorium on new development and the described uncertainty means that I am unclear what contribution, if any, the site makes to the OUV of the WHS. As a result, on the basis of the evidence before me, I cannot conclude that the proposal would result in harm to the WHS.
22. Nevertheless, for the reasons described, I conclude that the appeal site would not represent the rounding off of a settlement and would result in harm to the character and appearance of the area, including the Conservation Area and NL. These matters could not be overcome at the technical details consent stage. The appeal site is therefore not suitable for residential development, having regard to its location, the proposed land use and the amount of development.
23. As such, I conclude that the scheme would conflict with LP Policies 1, 2, 3, 12, 23 and 24, Policy C1 of the Climate Emergency Development Plan Document (February 2023), and Policies AH6, AD1 and AD8 of the St Just in Penwith Neighbourhood Plan 2021 – 2030. Taken together, the relevant aspects of these policies seek to ensure that development is suitably located and that it is well designed, including by preserving landscape character and the significance of designated heritage assets. There would also be conflict with the Cornwall AONB Management Plan 2022 – 2027 which seeks to protect the scenic beauty of the NL.

### **Other Matters**

24. The appellant has referred to other developments that have been permitted in the immediate area. I do not have the full details of these schemes before me. However, the appellant has set out that these applications were approved under the principles of previously developed land and infill development. It is clear therefore that these schemes are not directly comparable to the proposal before me and do not lead me to reach an alternative decision.

### **Planning Balance and Conclusion**

25. The proposal would result in harm to the character and appearance of the area, including to the Conservation Area and NL. It would therefore conflict with the development plan when considered as a whole, notwithstanding the fact that I have not found harm in relation to the WHS. The benefits of the scheme include the provision of up to nine dwellings in an area that is relatively well served by

public transport, and which would contribute towards housing need, including the possibility of affordable dwellings. It would also provide economic benefits during the construction phase and post-occupation. Given the identified harm, I do not find that the proposal would result in an efficient use of land. Overall, I find that the benefits are moderate in nature when considered in combination.

26. From the evidence before me, the Council is unable to demonstrate a five-year supply of deliverable housing sites, with the current figure being just 3.8 years. I have no evidence before me to suggest that this position is likely to improve in the short-term.
27. The site is outside of the settlement boundary of Truthwall but is well related to the existing built form. The requirements of Policy S5(j)(i) of the Framework could therefore be said to be met. However, the proposal would clearly not conform with part 1 of Policy S5, in the sense that it would conflict with national decision making policies in relation to Conservation Areas and NL's. Indeed, in this instance, the harm I have identified would substantially outweigh the benefits of the proposal.
28. Furthermore, even if it was considered that the appeal site was within the settlement, the appeal would still not succeed on the basis that the harm substantially outweighs the benefits when considering the requirements of Policy S4(1). Furthermore, in relation to Policy S4(2)(a)(ii) of the Framework, the proposal would also have a substantial adverse impact upon the NL.
29. The appellant has referred to Policy HO7 of the Framework. The proposal would provide a mixture of market and affordable dwellings in an area where there is housing need. It is unclear to me whether this is sufficient to trigger Policy HO7. However, even if it was of relevance, and substantial weight was to be afforded to the modest provision of homes in this case, I would still conclude that the harm substantially outweighs the benefits in this instance.
30. As such, there are no material considerations, including the provisions of the Framework, that outweigh the identified harm and associated development plan conflict. The appeal is therefore dismissed.

*C Butcher*

INSPECTOR